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37.00
5.00
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DECLARATION OF RESTRICTIONS

Declaration of covenants and restrictions made this 13th day of October, 1994 by TROUT CREEK DEVELOPMENT CORPORATION, a Delaware corporation ("Developer"), the owner of all the right, title, and interest, both legal and equitable, in and to the property situated in Pasco County, Florida described in (the "Property") Exhibit "A" attached hereto and herein incorporated by reference, and

W I T N E S S E T H:

WHEREAS, the Property is part of a larger master planned community in Pasco County, known as Meadow Pointe, which is more particularly described on Exhibit "B" attached hereto and herein incorporated by reference (the "Meadow Pointe Community").

WHEREAS, the Developer, as owner of the Property in order to protect the health and welfare of the public, to protect the property values and maintain the attractiveness of the Property and the Meadow Pointe Community, desires to impose certain covenants and restrictions on the use of the Property.

NOW, THEREFORE, it is declared that the Property shall be subject to the following covenants and restrictions which are to run with the land and are and shall be binding for the period set forth hereinafter:

1. No lot or parcel shall be used except for residential purposes. No building shall be erected, altered, placed or permitted to remain on any lot other than one single family dwelling not to exceed two stories in height with a private two-car garage and one utility building, or a builder's temporary structure.

2. No structure of a temporary character, trailer, tent, shack, garage, or other outbuilding shall be used on any lot at any time as a residence, temporarily or permanently. No structure may be erected on any lot for other than residential purposes except a private garage and one utility building, or a builder's temporary structure.

3. The living area of the main structure, exclusive of garages, shall not be less than 1,500 square feet and not more than 2,050 square feet, provided however, that the foregoing limitation on the maximum size of the main structure shall not apply so as to prohibit additions to the main structure constructed at least one year after the issuance of a certificate of occupancy for the main structure. Any such addition shall be of the same kind of material as is used in the main structure, shall conform architecturally with the main structure, and shall be subject to prior review and approval by the Developer in accordance with paragraph 22 hereof.

Prepared by: Trout Creek Development Corp.
P.O. Box 271772
Tampa, FL 33688

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4. No dwelling shall be constructed on a plot having an area of less than 7,500 square feet. Front, rear and side setback requirements, as established by County ordinance in effect at the time of construction, shall be complied with, provided however, that in no event shall any building be erected closer than 18 feet to the front lot line, or closer than 13 feet to the rear lot line or closer than five feet to any interior side lot line. No building situated on a corner lot shall be erected closer than 18 feet to any street right-of-way.

5. No garage or structure other than a builder's temporary structure shall be erected on any lot prior to the construction of a dwelling. If a garage or utility building is built either simultaneously with or subsequent to the construction of the dwelling, the garage shall be of the same kind of material as the construction of the dwelling. The garage or utility building shall conform architecturally with the dwelling. The garage shall accommodate two cars unless the Developer, at its option and in its sole discretion, elects to permit the construction of a one car garage.

6. No noxious or offensive activity shall be carried on upon any lot, nor shall anything be done thereon which may be or become an annoyance or nuisance to the neighborhood.

7. No structure shall be moved onto any lot or parcel in the area covered by these restrictions, except temporary buildings used by a builder in connection with construction work, and permitted utility buildings.

8. No animals, livestock or poultry of any kind shall be raised, bred or kept on any lot, except that dogs, cats or other household pets may be kept, provided that they are not kept, bred or maintained for any commercial purposes. However, no more than four household pets shall be permitted.

9. No sign of any kind shall be displayed to the public view on any lot except for one professionally lettered sign not more than two feet square in size advertising the property for sale or rent, and except for signs used by a builder to advertise the property during the construction and sales period. No pool signs shall be permitted.

10. No lot shall be used as a dumping ground for rubbish. All garbage or trash containers, oil tanks, bottle gas tanks, soft water tanks and similar structures or installations shall be placed under the surface of the ground or walled-in areas or screened with fencing or shrubbery so as to not be visible from the street or objectionable to adjacent residences.

11. No chain link fences shall be permitted. No fence or part thereof may be placed any closer to the street than a dwelling

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could be placed on the same lot, except as may be required by FHA/VA or other governmental regulation. No fence situated on a corner lot shall be erected closer than 20 feet to any street right-of-way. (Refer to paragraph 22 for additional information concerning fence construction.)

12. Gravel-type roofs may not be used except on flat roof surfaces.

13. Simultaneously with the construction of a dwelling on any lot, a four-foot wide cement sidewalk shall be installed at the expense of the lot owner according to the specifications of Pasco County, Florida, the line and grade of said sidewalk to be in accordance with site plan approved by Developer.

14. Each lot, whether occupied or unoccupied, shall be maintained reasonably clean and free from refuse, debris, unsightly growth and fire hazard.

15. Easements for drainage, entry walls, and/or for installation and maintenance of utilities are reserved as shown on the recorded plat. Within these easements, no structure, planting or other material shall be placed or permitted to remain which may damage or interfere with the installation and maintenance of utilities or the entry walls or which may impede the flow of water through drainage channels in the easements. The easement area of each lot and all improvements in it shall be maintained continuously by the owner of the lot, except for those improvements for which a public authority or utilities company is responsible. The owners of lots abutting drainage retention ponds owned by the Meadow Pointe Community Development District shall be responsible for mowing and routine maintenance of the adjacent drainage retention ponds provided, however, that the community development district shall be responsible for maintaining all stormwater management improvements constructed in such areas.

16. In connection with the development of any lot for residential purposes, or the construction of improvements thereon, reasonable care shall be used to preserve and retain as many trees as is reasonably possible. No excavation or fill or clear cutting of trees shall be performed in violation of law.

17. No boat, boat trailer, camper, mobile home, travel trailer, van or truck with a capacity in excess of one ton, trailer, or other similar motor vehicle shall be permitted to remain on any lot or public street unless inside a garage or otherwise parked, stored or located in such a manner and location on a lot so as not to be visible from the public streets or neighboring lots.

18. Exterior Attachments: A standard mailbox approved by the Developer shall be installed and maintained on each lot within the

Meadow Pointe Community, including the Property. In the event a mailbox is damaged or destroyed, it shall be repaired or replaced, as the case may be, so as to conform with such standard mailbox. No clothesline, or clothes-hanging devices exterior to a residence, and no exterior radio, television, electronic or like antennas, aerials, transmission or receiving tower(s) apparatus or devices or other similar or dissimilar exterior attachment shall be installed, permitted, or located on any lot in such a manner or location as to be visible from the public streets or neighboring lots.

19. No stripped, unsightly, offensive, wrecked, junked, or dismantled vehicles or portions thereof, no furniture or appliances designed for normal use or operation within (as distinguished from outside of) dwellings, shall be parked, permitted, stored or located upon any lot in such a manner or location as to be visible to any other lot or from the street. No building or improvement which has been partially or totally destroyed by fire or other casualty shall be allowed to remain in such state for more than six months from the time of such destruction. If reconstruction or repair of any such buildings or improvement is not so commenced within six months, the owner thereof shall raze or remove the same promptly from such owner's lot. All lots, whether occupied or unoccupied, and any buildings, structures or improvements thereon, shall at all times be maintained in such a manner as to prevent their becoming unsightly by reason of unattractive growth on such lot or the accumulation of rubbish or debris thereon. Every building, structure or other improvement, the construction of which is begun on any lot, shall be diligently and continuously prosecuted after the beginning of such construction or placement and the same shall be fully completed, except to the extent prevented by strikes, lockouts, boycotts, the elements, war, inability to obtain materials, acts of God or similar causes within 12 months from the date of commencement of construction thereof.

20. Nothing contained in this Declaration shall be interpreted or construed to prevent Developer, its successors or assigns or its or their contractors, or subcontractors, from doing or performing on all or any part of the properties owned or controlled by Developer, or its successors or assigns, whatever they determine to be reasonably necessary or advisable in connection with the completion of the development of the Property, including without limitation:

a. erecting, constructing, and maintaining thereon, such structures as they determine necessary for the conduct of Developer's business of completing development of the Meadow Pointe Community and disposing of the same in lots by sale, leases, or otherwise; or

b. maintaining such sign or signs thereon as may be reasonably necessary in connection with the sale, lease, or other transfer of the properties in lots.

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21. Developer, the Meadow Pointe Community Development District, a special purpose unit of local government organized pursuant to Chapter 190, Florida Statutes (the "District"), or their successors or assigns, may place, build, erect and/or install wall(s) and/or fence(s). No lot owner, or other person without the express written consent of the Developer and the District, or their respective successors or assigns, shall paint, deface, alter the appearance, change or renovate, such wall(s) or fence(s) in any manner whatsoever, nor shall any attachments be made thereto of any nature. It is intended that once such wall(s) and/or fence(s) is originally constructed, no lot owner or other person shall change the architectural or visual appearance, or affect the structural integrity, of such wall(s) or fence(s).

22. Developer, in order to preserve and maintain the aesthetic qualities of the Meadow Pointe Community shall have architectural control with respect to all buildings and improvements constructed on any lot including swimming pools, pool enclosures, outbuildings, sheds, fences, etc. The owner of any lot, therefore, shall provide Developer with preliminary artist renderings of the elevations of the buildings to be constructed on the lot along with the site plans showing locations of all buildings prior to any construction. It is understood that the site plans shall be consistent with the approved zoning then existent for the Property. Developer shall have a period of two weeks from receipt of said documents in which to approve the renderings and site plan. Said approval shall not be unreasonably withheld and should Developer disapprove, it shall do so in writing within the time provided, and shall specify with reasonable particularity the reasons for disapproval. Such disapproval shall not, at any time, limit the owner's right to resubmit renderings and site plans until same are approved by Developer in the reasonable manner required hereunder. Should Developer fail to respond to a submittal of a rendering and/or site plan within the time required, then Developer shall be conclusively presumed to have approved same. Upon approval of said renderings and/or site plan the owner may proceed with the construction of improvements as long as the final plans for same are in substantial accordance with those which have been previously submitted to the Developer.

23. The area(s) shown as "conservation areas" on the recorded plat of the Property subject to this Declaration shall be left to remain and survive intact, in its present, natural condition and state. The disturbance in any manner of the existing natural condition, character and state of the "conservation areas," or the vegetation thereon, or the ecology, topography or bionomics thereof, is absolutely prohibited. It is the intention of the undersigned that the "conservation areas" shall not be changed, disturbed, used, affected or molested in any manner whatsoever, except as permitted or required by law.

24. These covenants and restrictions are to run with the land and shall be binding on all parties and all persons claiming under them for a period of 30 years from the date these covenants and restrictions are recorded, after which time said covenants and restrictions shall be automatically extended for successive periods of 10 years unless an instrument signed by a majority of the then owners of the lots within the Property has been recorded, agreeing to change said covenants and restrictions in whole or in part.

25. If any person shall violate or attempt to violate any of the covenants and restrictions herein, it shall be lawful for any other person or persons owning any real property which is subject to this Declaration or any person or persons owning real property elsewhere in the Meadow Pointe Community, to prosecute any proceedings at law or in equity against the person or persons violating or attempting to violate any such restrictions to prevent him or them from so doing and/or to recover damages for such violations. In connection with any proceedings to enforce these restrictions, the prevailing party shall be entitled to recover reasonable attorney's fees and costs.

26. Invalidation of any one of these covenants, or any part thereof by judgment or court order shall in no way affect any of the other provisions, which shall remain in full force and effect.

27. It shall be the responsibility of each lot owner within the Property at the time of construction of a building, residence, or structure, to comply with the construction plans for the surface water management system pursuant to Chapter 40D-4 F.A.C., approved and on file with the Southwest Florida Water Management District ("SWFWMD").

28. It is the lot owner's responsibility not to remove native vegetation (including cattails) that become established within the required littoral zones of wet detention ponds abutting their property. Removal includes dredging, the application of herbicide, and cutting. Lot owners should address any question regarding authorized activities within the wet detention pond to SWFWMD, Brooksville Permitting Department.

29. No lot owner within the Property may construct or maintain any building, residence, or structure, or undertake or perform any activity in the wetlands, buffer areas, and upland conservation areas described in the approved permit and recorded plat of the subdivision, unless prior approval is received from the SWFWMD pursuant to Chapter 40D-4 F.A.C.

30. To maintain property values and the attractiveness of the entire Meadow Pointe Community (including the Property), the Developer shall have the right, but not the obligation, to institute appropriate legal proceedings to enforce these covenants and restrictions for a period of ten years from the date hereof

without regard to whether the Developer then owns any part of the Property. Further, the Property lies within the boundary of the District, and to the extent permitted by applicable law, the Board of Supervisors of the District shall have the right, but not the obligation, to institute appropriate legal proceedings to enforce these covenants and restrictions, even if the District does not own any of the Property.

IN WITNESS WHEREOF, the party hereto has caused these presents to be executed in its Corporate name, by its officers duly authorized, and its Corporate Seal to be affixed hereto, the date and year first above written.

TROUT CREEK DEVELOPMENT CORPORATION

By Stuart B. Aronoff
Typed Name STUART B. ARONOFF
Title VICE PRESIDENT

STATE OF Florida
COUNTY OF Hillsborough

The foregoing instrument was acknowledged before me this 15th day of October, 1994, by Stuart B. Aronoff, the President of Trout Creek Development Corporation, a Delaware corporation, on behalf of the corporation. He/~~she~~ is personally known to me; or has produced N/A (type of identification), as identification and who ~~did~~ (did not) take an oath.

Pamela J Braun
Signature of person taking acknowledgement

Pamela J. Braun
(Typed, printed or stamped name of acknowledger)

Notary Public, State of Florida

Commission Number: CC112833

My Commission Expires: _____

Notary Public, State of Florida at Large
My Commission Expires June 7, 1995

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EXHIBIT "A"

All lots lying within MEADOW POINTE PARCEL 5, UNIT 4A as per map or plat thereof recorded in Plat Book 32, Pages 1 through 3 of the Public Records of Pasco County, Florida.

EXHIBIT "B"

MEADOW POINTE

DESCRIPTION: All of Sections 31, 32, and 33, Township 26 South, Range 20 East, Pasco County, Florida

LESS - The Southeast 1/4 of the Southeast 1/4 of said Section 33.

LESS - The Southwest 1/4 of the Southeast 1/4 of said Section 33.

LESS - The triangular Southwest 1/2 of the South 1/2 of the Northwest 1/4 of the Southeast 1/4 of said Section 33.

LESS - The East 1/2 of the Southeast 1/4 of the Southwest 1/4 of said Section 33.

LESS - The triangular Southeast 1/2 of the Southeast 1/4 of the Northeast 1/4 of the Southwest 1/4 of said Section 33.

LESS - The right-of-way for County Road No. 581.

LESS - Tanglewood Village, Phases 1 and 2.

Containing 1725.5 acres, more or less.

R1989262 VS977771 10/17/94 11:08 AM
RECORDING/INDEXING 37.00
RECORDS MODERNIZATION FEE 5.00
TOTAL: 42.00
CHECK: 42.00
CHURKA 21-A AMT PAID: 42.00